Employment Contract
Superintendent of Vancouver Public Schools

It is hereby agreed by and between the Board of Directors ("Board") of Vancouver School District No. 37, Clark County, Washington ("District") and Jeff Snell, Ed.D. ("Superintendent") that the Board, in accordance with its action at a meeting held on March _____, 2021, has and does employ Jeff Snell as Superintendent of the District on the following terms and conditions:

AGREEMENTS

1. **Term.** The term of this Employment Contract is for three (3) years, commencing on July 1, 2021, and ending on June 30, 2024. Each contract year will be for the period July 1 through June 30 of the subsequent year and will consist of 220 workdays.

2. **Professional Responsibilities.**

2.1 The Superintendent will devote his full time and attention to perform faithfully the duties of the Superintendent and Secretary of the Board pursuant to state law and the policies, rules, and regulations made thereunder by the Board, the Office of Superintendent of Public Instruction, the State Board of Education, and the Washington Professional Educators Standards Board. The Superintendent will regularly report to the Board on the affairs of the District by such methods as the Board and Superintendent will mutually develop.

2.2 Subject to Board approval, and to any restrictions imposed by law, the Superintendent will have charge of the administration of the schools of the District. He may organize, reorganize, and arrange the administrative and supervisory staff of the District in the manner which in his judgment best serves the interest of the District. The responsibility for the selection, placement, and transfer of personnel will be vested in the Superintendent, subject to approval by the Board. He will suggest regulations, rules, and procedures deemed necessary for the operation of the District, and in general, perform all duties incident to the office of the Superintendent and such other duties as may be prescribed by the Board from time to time. Nothing in this paragraph authorizes the Superintendent to perform any act which under statutes of the State of Washington cannot be delegated by the Board to the Superintendent.

2.3 The Superintendent, with Board approval, may attend appropriate professional meetings at the local, state and national level, the reasonable expenses of which will be borne by the District.

2.4 The Superintendent, with advance approval by the Board, may undertake consultative work, speaking engagements, writing, lecturing, or other professional duties and obligations which do not conflict with his duties as Superintendent. Any such activities that require the Superintendent to be absent from the District must be approved in

advance by the Board. Such activities will not result in a salary reduction, provided that any compensation paid to the Superintendent in connection with such activities will be transferred to the District. If, however, the Superintendent chooses to use vacation leave to perform outside activities, he may retain all compensation paid. In cases where the Superintendent uses vacation leave to perform outside activities, the District will not be responsible for any expenses incident to the performance of such activities.

2.5 The Superintendent will maintain during the life of his contract a valid and appropriate certificate to act as Superintendent of Schools in the State of Washington.

3. Compensation and Benefits. The Superintendent's compensation and benefits under the terms of this Employment Contract will consist of the following.

3.1 For the 2021-2022 contract year (July 1, 2021, through June 30, 2022), the Superintendent's annual salary will be Two-Hundred Seventy-Five Thousand Dollars ($275,000), which will be payable in twelve (12) equal monthly installments.

For the 2022-2023 contract year (July 1, 2022, through June 30, 2023), the Superintendent's annual salary will be Two-Hundred Eighty-Five Thousand Dollars ($285,000), which will be payable in twelve (12) equal monthly installments.

For the 2023-2024 contract year (July 1, 2023, through June 30, 2024), the Superintendent's annual salary will be Two-Hundred Ninety-Five Thousand Dollars ($295,000), which will be payable in twelve (12) equal monthly installments.

3.2 The District will pay on behalf of the Superintendent, or reimburse the Superintendent for, reasonable professional development expenses approved in advance by the Board.

3.3 The Superintendent will be paid for holidays recognized by the District.

3.4 The Superintendent will accrue thirty (30) days of vacation per contract year, exclusive of legal holidays, with such accrual occurring on the first day of July. Vacation days must be taken at reasonable times so as not to disrupt the proper functioning of the District. The Board president will be notified of the vacation times being taken in advance and in writing. No more than five (5) consecutive student-attendance days will be taken for vacation during the time school is in session without prior permission from the Board. Vacation may be accumulated to a maximum of sixty (60) days. These days may be accumulated from year to year and will be deemed used in the order in which they were earned. Each contract year, the Superintendent may elect by June 30 to cash out up to thirty (30) vacation days, for which he will be compensated at the per diem rate of 1/220 of the annual salary per vacation day.

3.5 Upon retirement or separation from service, the Superintendent will have the option to be paid for up to thirty (30) paid vacation days at the per diem rate of 1/220 of the

annual salary as reportable compensation for purposes of retirement calculations in accordance with State retirement laws, regulations, and guidelines. Any remaining vacation days will be lost with no additional compensation cost to the District. In all events, the Superintendent's rights to compensation for vacation will be interpreted to avoid any risks to the District of any financial penalty or liability, such as excess compensation billings from any retirement system.

3.6 The Superintendent will receive those health benefits provided by the School Employees Benefits Board consistent with the benefits received by other District employees.

3.7 The Superintendent will receive twelve (12) days annual leave with compensation for illness, injury, and emergencies per contract year. Such unused leave will accumulate from year to year to the extent allowed by law. Accrued and unused will be eligible for cash out as provided by state law and District policy at the per diem rate of 1/220 of the applicable annual salary at the time of cash out.

3.8 The Superintendent will receive the same number of personal leave days per contract year as other District certificated administrators.

3.9 The Superintendent's annual salary for the contract years 2022-2023 and later will be increased by the amount of any cost-of-living adjustment (i.e., COLA) approved by the Board for other District certificated administrators. Such adjustment will be calculated before any additional annual salary increases approved by the Board per paragraph 9 is applied. Nothing in this provision prevents the Board and the Superintendent from agreeing to a different annual salary for ensuing contract years in accordance with paragraph 9.

3.10 The Superintendent will attend appropriate professional meetings at the local, state, and national level, with the reasonable expenses of said attendance to be incurred by the District. The Superintendent also agrees to maintain membership and active participation in the Washington Association of School Administrators (WASA) and the American Association of School Administrators (AASA), and the District will pay the Superintendent's membership dues for those two organizations.

3.11 In addition to professional organizations, the Superintendent is expected to be active in and join various civic organizations that benefit the District and through which information is disseminated about the schools and their activities. The payment for dues and expenses for these organizations may be paid by the District but must be approved in advance by the Board.

3.12 The Board has determined that payment to the Superintendent for use of his personal automobile for official travel would be less costly to the District than providing automobiles for official travel. Therefore, the Superintendent may use his own vehicle for official business of the District. The District will provide to the Superintendent an

allowance for local automobile travel in the geographical area of Clark and Multnomah counties in the amount of five-hundred dollars ($500) per month. Authorized automobile travel outside of Clark and Multnomah counties will be reimbursed at the standard rate established by the District for mileage, provided that the claim is submitted in accordance with the District's usual procedures. In addition, reimbursement for expenses will include actual and reasonable costs for lodging and meals in accordance with District policy and procedure.

3.13 In addition to the salary set forth above, the District will contribute seven (7) percent of the Superintendent's annual salary per month, all of which the Superintendent hereby elects to have applied to the purchase of a tax-sheltered annuity intended to meet the requirements of Section 403(b) of the Internal Revenue Code. The annuity will be made available to the Superintendent on the same basis as tax-sheltered annuities are made available to District employees generally. The election is irrevocable for the first year of this Employment Contract. For each subsequent contract year, the Superintendent may, by giving written notice to the District at least ten (10) days prior to the contract anniversary date, terminate the election for the following contract year. In that event, the Superintendent will receive additional compensation for such year equal to and in place of the annuity purchase amount referred to in this paragraph.

4. Evaluation.

4.1 The Board and Superintendent will meet between March 15 and September 15 of each contract year to mutually establish District goals and objectives for the ensuing contract year. These goals and objective will be reduced to writing and, to the extent applicable, will be considered by the Board in evaluating the Superintendent.

4.2 The Superintendent's job performance and achievement of individual professional goals will be evaluated not less than twice annually by the Board, with the results of each evaluation to be made known to the Superintendent.

4.3 Prior to March 15 of each contract year, the Board and Superintendent will collaboratively develop an annual schedule to identify and align target dates and establish a plan for the following: (1) district goal-setting per paragraph 4.1; (2) the Superintendent's performance evaluations and review of individual professional goals per paragraph 4.2; and (3) for performing the Superintendent's annual employment contract review, per paragraph 9.

5. Physical Examination.

5.1 The Superintendent will have a comprehensive physical examination with a physician of his choice at least once every two (2) years. A statement certifying to the medical fitness of the Superintendent will be available to the Board upon request and will be treated as

confidential information by the Board to the extent permitted by law. The reasonable costs of such medical examination and report not covered by insurance, if any, will be paid by the District.

5.2 The Board reserves the right to require the Superintendent to submit to a medical examination at the expense of the District at any time that the Board reasonably believes that the Superintendent is disabled, consistent with federal and state law.

6. Termination.

6.1 Termination for Sufficient Cause: During the term of this Employment Contract, the Superintendent will be subject to discharge for sufficient cause. The term "sufficient cause" as used herein means that the Superintendent has violated any local, state, or federal laws, regulations, or ordinances District policies and procedures, professional code of responsibility, or terms of this Employment Contract, or that the Superintendent has engaged in misfeasance, non-feasance, or malfeasance - that results in detrimental operational or financial consequences to the District. In the event that the Board determines there is sufficient cause to terminate this Employment Contract, it will provide written notice to the Superintendent. The Superintendent's compensation will terminate upon sixty (60) calendar days after that notice. At the Board's discretion, the Superintendent may remain on-duty or be on paid administrative leave during those sixty (60) calendar days.

6.2 Termination without Sufficient Cause: The Board reserves the right to terminate this Employment Contract at any time for other than sufficient cause. Prior to exercising this clause, the Board will provide the Superintendent with a reasonable opportunity to rectify performance concerns, if any. Should the Board exercise this right, the Superintendent will receive fifty-percent of the annual base salary for the remaining contract term or total compensation equivalent to one year of the annual base salary, whichever is less. Accrued vacation, annual, sick, and personal leave will not be compensated. Payments will be made in two installment payments, over a 12 month period. If termination without sufficient cause occurs, the District agrees to reimburse the Superintendent's Consolidated Omnibus Budget Reconciliation Act (COBRA) family medical coverage costs for up to eighteen (18) months or until the Superintendent obtains new employment, whichever occurs first.

7. Complaint Referral. The Board individually and collectively will promptly refer to the Superintendent for study and recommendation, as appropriate, all criticism, complaints and suggestions related to the affairs of the District that are called to its attention.

8. Indemnification and Hold Harmless. The Board agrees, as a further condition of the Superintendent's Employment Contract, that it will defend, hold harmless, and indemnify the Superintendent, and to the extent allowed by law, his community property, from any and all third-party demands, claims, suits, actions, damages, costs,

charges and expenses, including court costs and attorney's fees; provided however, that the incident out of which such demands, claims, suits, actions, damages, costs, charges, and expenses arise occurred while the Superintendent was acting within the scope of his employment and during the good-faith performance of his contract. In such cases, the District will provide the Superintendent with a legal defense, provided that if a conflict exists between the legal position of the Superintendent and the District, the Superintendent may, with the concurrence and agreement of the Board, obtain independent counsel, which reasonable fees thereof will be indemnified by the District if the Superintendent is entitled to a defense as provided above. This provision is not intended to apply to any dispute or legal action of any kind between the Superintendent and the District. Entitlement to costs, damages, and/or fees of any nature, including attorneys' fees, in all such disputes and actions between the Superintendent and the District that may arise will be the responsibility of the District only to the degree required by the laws of the State of Washington.

9. Contract Review.

9.1 This Employment Contract will be reviewed prior to May 30 of each calendar year to consider adjustments in compensation and benefits for the ensuing contract year. In connection with each such review, the Board and the Superintendent will attempt to agree upon the salary and benefits for the subsequent contract year. Absent mutual agreement, the Board will determine the salary and benefits, which will not be less than those provided in the immediately preceding contract year.

9.2 Any adjustments in compensation and benefits will become effective as of the beginning of each contract year, which will be on July 1. If the Board has not acted by July 1 regarding adjustments to compensation and benefits for the ensuing contract year, any increases in compensation and benefits later approved will be applied prospectively and prorated in equal amounts over the remaining months of that contract year.

9.3 Prior to July 1 of each calendar year, the Board will also review this Employment Contract to consider whether an extension of the contract term should be offered to the Superintendent, or whether the Employment Contract should continue toward its maturity date.

9.4 Changes to this Employment Contract pursuant to paragraphs 9.1 and 9.3 will be documented either by a contract amendment or by a new employment contract that incorporates changes to the preceding contract.

9.5 This Employment Contract will be reviewed annually by the District's legal counsel to ensure it meets all legal requirements.

10. Savings. This contract will be subject to and interpreted consistent with the laws of the State of Washington. If any provision of this Employment Contract is found by a court of

competent jurisdiction or other agency having jurisdiction to be unlawful, the remainder of the contract will not be affected by such determination and will remain in full force and effect.

11. **Complete Agreement.** The Employment Contract represents the complete agreement between the parties regarding the employment of the Superintendent by the Board, and there are no oral or other written agreements that modify its terms.

12. **Effective Date.** This Employment Contract is effective on July 1, 2021.

FOR THE SUPERINTENDENT

_____ _____

Dr. Jeff Snell Date

FOR THE DISTRICT

_____ _____

Kyle Sproul, Board President Date